ance of any amendment to either thereof, shall not (a) affect or waive any right, duty, obligation, or liability which shall have arisen or which may thereafter arise in connection with any provision of this part or any regulation issued under this part, or (b) release or extinguish any violation of this part or of any regulation issued under this part, or (c) affect or impair any rights or remedies of the Secretary or of any other person with respect to any such violation.

§ 937.67 *Duration of immunities.* The benefits, privileges, and immunities conferred upon any person by virtue of this part shall cease upon its termination, except with respect to acts done under and during the existence of this part.

§ 937.68 *Agents.* The Secretary may, by designation in writing, name any officer or employee of the United States, or name any agency or division in the United States Department of Agriculture, to act as his agent or representative in connection with any of the provisions of this part.

§ 937.69 *Derogation.* Nothing contained in this part is, or shall be construed to be, in derogation or in modification of the rights of the Secretary or of the United States (a) to exercise any powers granted by the act or otherwise, or (b) in accordance with such powers, to act in the premises whenever such action is deemed advisable.

§ 937.70 *Personal liability.* No member or alternate member of the committee and no employee or agent of the committee shall be held personally responsible, either individually or jointly with others, in any way whatsoever, to any person for errors in judgment, mistakes, or other acts, either of commission or omission, as such member, alternate, employee, or agent, except for acts of dishonesty, willful misconduct, or gross negligence.

§ 937.71 *Separability.* If any provision of this part is declared invalid or the applicability thereof to any person, circumstance, or thing is held invalid, the validity of the remainder of this part or the applicability thereof to any other person, circumstance, or thing shall not be affected thereby.

Issued at Washington, D. C., this 20th day of June 1958, to become effective upon publication in the FEDERAL REGISTER.

[SEAL] DON PAARLBERG,
Assistant Secretary.

[F. R. Doc. 58-4811; Filed, June 24, 1958; 8:54 a. m.]

PART 969—AVOCADOS GROWN IN SOUTH FLORIDA

FINDINGS AND DETERMINATIONS RELATIVE TO EXPENSES AND FIXING OF THE RATE OF ASSESSMENT FOR THE 1958–59 FISCAL YEAR

Notice was published in the June 6, 1958, daily issue of the FEDERAL REGISTER (23 F. R. 3969) that consideration was being given to proposals regarding the expenses and the fixing of the rate of assessment for the fiscal year (April 1, 1958, through March 31, 1959) under the marketing agreement, as amended, and Order No. 69, as amended (7 CFR Part 969; 22 F. R. 3513), regulating the handling of avocados grown in south Florida, effective under the applicable provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.; 68 Stat. 906, 1047).

After consideration of all relevant matters presented, including the proposals set forth in the aforesaid notice which were submitted by the Avocado Administrative Committee (established pursuant to the said amended marketing agreement and order), it is hereby found and determined that:

§ 969.206 *Expenses and rate of assessment for the 1958–59 fiscal year*—(a) *Expenses.* The expenses that are reasonable and likely to be incurred by the Avocado Administrative Committee, established pursuant to the provisions of the aforesaid amended marketing agreement and order, for the maintenance and functioning of such committee, in accordance with the provisions thereof, during the said fiscal year beginning April 1, 1958, and ending March 31, 1959, will amount to $9,153.00.

(b) *Rate of assessment.* The rate of assessment which each handler who first handles avocados shall pay as his pro rata share of the aforesaid expenses in accordance with the applicable provisions of said amended marketing agreement and order is hereby fixed at four cents ($0.04) per bushel, or equivalent quality of avocados handled by such handler during the 1958–59 fiscal year.

(c) Terms used in said amended marketing agreement and order shall, when used herein, have the same meaning as is given to the respective term in said amended marketing agreement and order.

(d) The provisions hereof shall become effective 30 days after publication in the FEDERAL REGISTER.

(Sec. 5, 49 Stat. 753, as amended; 7 U. S. C. 608c)

Dated: June 19, 1958.

[SEAL] FLOYD F. HEDLUND,
Acting Director, Fruit and Vegetable Division, Agricultural Marketing Service.

[F. R. Doc. 58-4781; Filed, June 24, 1958; 8:47 a. m.]

PART 1001—LIMES GROWN IN FLORIDA

DETERMINATION RELATIVE TO EXPENSES AND FIXING OF RATE OF ASSESSMENT FOR 1958–59 FISCAL YEAR

Notice was published in the June 6, 1958, issue of the FEDERAL REGISTER (23 F. R. 3970), that consideration was being given to proposals regarding the expenses and the fixing of the rate of assessment for the 1958–59 fiscal year under the marketing agreement, as amended, and Order No. 101, as amended (7 CFR Part 1001; 22 F. R. 2526), regulating the handling of limes grown in Florida, effective under the applicable provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.; 68 Stat. 906, 1047).

After consideration of all relevant matters presented including the proposals set forth in such notice which were submitted by the Florida Lime Administrative Committee established pursuant to the aforesaid amended marketing agreement and order, it is hereby found and determined that:

§ 1001.205 *Expenses and rate of assessment for the 1958–59 fiscal year*—(a) *Expenses.* The expenses that are reasonable and likely to be incurred by the Florida Lime Administrative Committee, established pursuant to the provisions of the aforesaid amended marketing agreement and order, for the maintenance and functioning of such committee, in accordance with the provisions thereof, during the fiscal year beginning April 1, 1958, and ending March 31, 1959, will amount to $8,953.00.

(b) *Rate of assessment.* The rate of assessment which each handler who first handles limes shall pay as his pro rata share of the aforesaid expenses in accordance with the applicable provisions of said amended marketing agreement and order is hereby fixed at four cents ($0.04) per bushel, or equivalent quantity of limes handled by such handler during the 1958–59 fiscal year.

(c) Terms used in the said amended marketing agreement and order shall, when used herein, have the same meaning as is given to the respective term in said amended marketing agreement and order.

(d) The provisions hereof shall become effective 30 days after publication in the FEDERAL REGISTER.

(Sec. 5, 49 Stat. 753, as amended; 7 U. S. C. 608c)

Dated: June 19, 1958.

[SEAL] FLOYD F. HEDLUND,
Acting Director, Fruit and Vegetable Division, Agricultural Marketing Service.

[F. R. Doc. 58-4783; Filed, June 24, 1958; 8:47 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 1660]

[1773279]

MINNESOTA

REVOKING EXECUTIVE ORDER NO. 8173 OF JUNE 15, 1939, ESTABLISHING TALCOT LAKE MIGRATORY WATERFOWL REFUGE

By virtue of the authority vested in the President, and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Executive Order No. 8173 of June 15, 1939, which reserved the following-described nonpublic lands for use of the Department of Agriculture as the Talcot

Lake Migratory Waterfowl Refuge, redesignated the Talcot Lake National Wildlife Refuge by Proclamation No. 2416 of July 25, 1940, is hereby revoked:

FIFTH PRINCIPAL MERIDIAN

T. 105 N., R. 38 W.,
Sec. 17, SW¼ and W½W½NW¼SE¼;
Sec. 18, part of SE¼;
Sec. 19, lots 2 to 5, inclusive, N½NE¼, and N½NW¼;
Sec. 20, part of NE¼NW¼, W½NW¼, SE¼NW¼, and NW¼SW¼;

and a part of Talcot Lake, all of which area of land and water is bounded by the following-described lines:

Beginning at the corner of secs. 18 and 19, T. 105 N., R. 38 W., and secs. 13 and 24, T. 105 N., R., 39 W., in the line between Murray and Cottonwood Counties;

Thence between secs. 18 and 19, T. 105 N., R. 38 W.,

East, to the east one-sixteenth corner of said sections;

Thence in sec. 18,

N. 27° E., 16.00 chains;
West, 14.80 chains;
North, 25.76 chains, to the center line;
East, with center line to the one-quarter corner of secs. 17 and 18;

Thence in sec. 17,

East, with center line to the northeast corner of the W½W½NW¼SE¼;
South, to the southeast corner of the W½W½NW¼SE¼;
West, to the center south one-sixteenth corner;

South, with center line to the one-quarter corner of secs. 17 and 20;

Thence in sec. 20,

South, with center line, 13.64 chains;
West, 10.00 chains;
South, 5.00 chains;
East, 10.00 chains, to the center line;
South, with center line to the center one-quarter corner;
West, with center line, to the center west one-sixteenth corner;
South, to the southwest one-sixteenth corner;
West, to the south one-sixteenth corner of secs. 19 and 20;

Thence in sec. 19,

West, with the south one-sixteenth line to the meander corner on the east shore of Talcot Lake;
West, with the south one-sixteenth line in Talcot Lake to the theoretical south one-sixteenth corner of sec. 19, T. 105 N., R. 38 W., and sec. 24, T. 105 N., R. 39 W., in the line between Murray and Cottonwood Counties;

Thence between said secs. 19 and 24,

North, to the point of beginning.

The areas described aggregate 804.71 acres.

The lands have been conveyed to the State of Minnesota.

ROGER ERNST,
Assistant Secretary of the Interior.
JUNE 18, 1958.

[F. R. Doc. 58-4774; Filed, June 24, 1958; 8:45 a. m.]

TITLE 14—CIVIL AVIATION

Chapter I—Civil Aeronautics Board

[Reg. No. SR-425]

PART 1—CERTIFICATION, IDENTIFICATION, AND MARKING OF AIRCRAFT AND RELATED PRODUCTS

PART 4b—AIRPLANE AIRWORTHINESS; TRANSPORT CATEGORIES

PART 40—SCHEDULED INTERSTATE AIR CARRIER CERTIFICATION AND OPERATION RULES

PART 41—CERTIFICATION AND OPERATION RULES FOR SCHEDULED AIR CARRIER OPERATIONS OUTSIDE CONTINENTAL LIMITS OF UNITED STATES

PART 42—IRREGULAR AIR CARRIER AND OFF-ROUTE RULES

SPECIAL CIVIL AIR REGULATION; PROVISIONAL CERTIFICATION AND OPERATION OF MULTI-ENGINE TURBINE-POWERED TRANSPORT AIRPLANES FOR WHICH TYPE CERTIFICATES HAVE NOT BEEN ISSUED

Adopted by the Civil Aeronautics Board at its office in Washington, D. C., on the 20th day of June 1958.

The aviation industry of the United States has been engaged for several years in a concentrated program of design, development, and construction of turbine-powered transports. Several hundred of these transports have been ordered by United States' air carriers at a cost of nearly two billion dollars. One airplane of this type has already been flown by the manufacturer for several hundred hours in an extremely varied and rigorous flight test program. Other types are in various stages of design, construction and flight testing by their manufacturers.

Air carriers have expressed the desire to operate these airplanes prior to final completion of the type certification programs. The air carriers have indicated in particular that they desire to conduct crew training and obtain as much experience as possible in ground handling, maintenance, and flight of these new airplanes prior to their introduction into commercial service.

Although certain limited operations of this nature have been permitted by the Administrator in the past, he has advised the Board that he considers his authority under Part 1 of the Civil Air Regulations inadequate for him to authorize the operations presently contemplated by the air carriers. The Board is of the opinion, however, that such operations by air carriers intending ultimately to use the airplanes in air carrier service will be in the public interest and should be permitted and encouraged prior to completion of type certification procedures, provided that such operations can be conducted safely. This will afford technical personnel of the air carriers, the Civil Aeronautics Administration, the Civil Aeronautics Board, and others an excellent opportunity to become familiar with the new equipment before it is used in air transportation.

The airplanes under consideration are being built to comply with the requirements of the Civil Air Regulations applicable to transport category airplanes. However, manufacturers of several of these types of airplanes have not yet demonstrated full compliance with the standards established in these regulations for the issuance of type certificates.

Normally, during the development of a new type airplane, the manufacturer applies to the Administrator for an experimental certificate. The Administrator thereafter issues such a certificate in accordance with Part 1 of the Civil Air Regulations if he finds that the airplane may be safely test flown by the manufacturer to show compliance with the Civil Air Regulations for the issuance of a type certificate. The Administrator prescribes appropriate operating restrictions, including the prohibition of carrying persons or property for compensation or hire. It is the policy of the CAA during this certification process to do everything possible to encourage legitimate experimentation leading to improvement in airplanes whenever this may be done without endangering persons and property not involved in the experimentation. In the present situation, turbine-powered transports have been issued experimental certificates in order that flight test programs may be completed. Historically, however, and in keeping with the intent of section 603 (a) (1) and (c) of the Civil Aeronautics Act of 1938, as amended, operations conducted in airplanes so certificated have been limited for the most part to flight test work and related purposes.

It is the practice of manufacturers to initiate production of airplanes of a new type while they are accomplishing the type certification program. Thus, many airplanes may be completed prior to the issuance of the type certificate; the number produced by various manufacturers will, of course, vary with orders on hand and anticipated demand for the airplanes.

In this period, however, the manufacturer is actively pursuing type certification of his airplane. Among other things he submits such descriptive data, test reports, and computations as are necessary to demonstrate that the airplane complies with the requirements of Part 4b. In addition, it is the CAA policy that the manufacturers' test pilots certify that the airplanes have been flown at least in all maneuvers necessary for proof of compliance with the flight requirements of Part 4b and Special Civil Air Regulation No. SR-422.

The Board considered that air carriers should be able to utilize those airplanes which are pending type and airworthiness certification under provisional certification to permit essential crew training and service tests, and to gain other useful information concerning, for example, fuel management, dispatching, and traffic control procedures, prior to